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COMMISSION IMPLEMENTING DECISION (EU) 2015/450

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laying down test requirements for Member States integrating into the second generation Schengen Information System (SIS II) or changing substantially their directly related national systems

(notified under document C(2015) 1612)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EC) No 1987/2006 of the European Parliament and of the Council of 20 December 2006 on the establishment, operation and use of the second generation Schengen Information System (SIS II) (1), and in particular Articles 8(4), 9(1) and 20(3), point (a) of Article 22, and Articles 36(4) and 37(7) thereof,

Having regard to Council Decision 2007/533/JHA of 12 June 2007 on the establishment, operation and use of the second generation Schengen Information System (SIS II) (2), and in particular Articles 8(4), 9(1) and 20(4), point (a) of Article 22, and Articles 51(4) and 52(7) thereof,

Having consulted the European Data Protection Supervisor,

Whereas:

(1)

The Schengen Information System was set up pursuant to the provisions of Title IV of the Convention of 19 June 1990 implementing the Schengen Agreement of 14 June 1985 between the governments of the States of the Benelux Economic Union, the Federal Republic of Germany and the French Republic on the gradual abolition of checks at their common borders (3). That system constituted an essential tool for the application of the provision of the Schengen acquis as integrated into the framework of the Union.

(2)

The Schengen Information System was replaced on 9 April 2013 by the second generation Schengen Information System (SIS II) when Regulation (EC) No 1987/2006 and Decision 2007/533/JHA became applicable. Like its predecessor system, SIS II constitutes a major counterpart to the abolition of controls at the internal borders as well as a crucial contribution to the maintenance of a high level of security within the area of freedom, security and justice.

(3)

The technical architecture of SIS II is composed of a central system (Central SIS II), national applications and a communication infrastructure between Central SIS II and the national applications.

(4)

It was and remains necessary to conduct tests in order to assess whether SIS II operates in accordance with the technical and functional requirements as defined in Regulation (EC) No 1987/2006 and Decision 2007/533/JHA.

(5)

The testing requirements applicable for the major test phases of the technical development of SIS II were laid down in Council Regulation (EC) No 189/2008 (4) and Council Decision 2008/173/JHA (5) as well as in Council Regulation (EC) No 1104/2008 (6) and Council Decision 2008/839/JHA (7). Those instruments defined the basic requirements and organisation of the tests of the SIS II Central system, the SIS II national systems, the interaction between them as well as the tests related to the communication infrastructure. As those instruments related to the technical development of SIS II, they exhausted their legal effect once SIS II entered into operation on 9 April 2013. Regulation (EC) No 1104/2008 and Decision 2008/839/JHA expired on 8 May 2013 and were moreover repealed by Council Regulation (EU) No 1273/2012 (8) and Council Regulation (EU) No 1272/2012 (9) respectively. The repeal of Regulation (EC) No 189/2008 and Decision 2008/173/JHA has been proposed in 2014 (10).

(6)

Regulation (EC) No 189/2008, Decision 2008/173/JHA, Regulation (EC) No 1104/2008 and Decision 2008/839/JHA made the tests of the communication infrastructure, the national compliance tests, the comprehensive tests as well as the test of the exchange of supplementary of information obligatory for Member States which migrated from SIS 1+ to SIS II. Success of testing of the Central SIS II, national compliance tests and tests related to the communication infrastructure was a precondition to start with the comprehensive test. The Commission had to declare the successful completion of the comprehensive test as a precondition of to apply Regulation (EC) No 1987/2006 and Decision 2007/533/JHA.

(7)

In the light of enlargement of the Union and in particular the enlargement of the area of freedom, security and justice it is necessary to define the tests which demonstrate the technical readiness of a Member State to integrate into SIS II. In order to reinforce legal certainty it is necessary to define testing requirements. These tests should prove that a Member State is able to exchange supplementary information, its national system is fully in compliance with Central SIS II, it is able to enter, update, delete and search data, it is able to upload photographs and fingerprints in the quality required and it is able to process data on misused identity.

(8)

Member States which intend to implement a substantial change in their SIS II national systems (N.SIS II) or SIRENE application as referred to in Regulation (EC) No 1987/2006 and Decision 2007/533/JHA should also undergo testing as defined by the Management Authority in order to prove full compliance with Central SIS II or demonstrate the ability to exchange supplementary information. The European Agency for the operational management of large-scale IT-systems in the area of freedom security and justice was empowered to be the Management Authority by Regulation (EC) No 1987/2006 and Decision 2007/533/JHA combined with Regulation (EU) No 1077/2011 of the European Parliament and of the Council (11).

(9)

Taking into account the principle that the same technical requirements should apply to all Member States, it is appropriate to apply the same test phases to Member States envisaging to integrate SIS II as the ones Member States had to execute for the migration from SIS 1+ to SIS II.

(10)

It is also appropriate to make use of the experience gained during development of SIS II and add tests which were not foreseen in any legal instruments but were added by Member States acting within preparatory bodies of the Council, in particular the test on the exchange of SIRENE forms.

(11)

The tests should be organised, defined and executed by the Management Authority assisted by the Member States.

(12)

Given that Regulation (EC) No 1987/2006 builds upon the Schengen acquis, Denmark, in accordance with Article 5 of the Protocol on the position of Denmark annexed to the Treaty on European Union and the Treaty establishing the European Community, notified by letter of 15 June 2007 the transposition of this acquis into its national law. Denmark participates in Decision 2007/533/JHA. It is therefore bound to implement this Decision.

(13)

The United Kingdom is taking part in this Decision to the extent that it does not concern the exchange of supplementary information in relation to Articles 24 and 25 of Regulation (EC) No 1987/2006, in accordance with Article 5 of the Protocol on the Schengen acquis integrated into the framework of the European Union annexed to the Treaty on European Union and the Treaty on the Functioning of the European Union, and Article 8(2) of Council Decision 2000/365/EC (12).

(14)

Ireland is taking part in this Decision to the extent that it does not concern the exchange of supplementary information in relation to Articles 24 and 25 of Regulation (EC) No 1987/2006, in accordance with Article 5 of the Protocol on the Schengen acquis integrated into the framework of the European Union annexed to the Treaty on European Union and the Treaty on the Functioning of the European Union, and Article 6(2) of Council Decision 2002/192/EC (13).

(15)

As regards Cyprus, this Decision constitutes an act building upon the Schengen acquis or otherwise related to it within the meaning of Article 3(2) of the 2003 Act of Accession.

(16)

As regards Croatia, this Decision constitutes an act building upon the Schengen acquis or otherwise related to it within the meaning of Article 4(1) of the 2012 Act of Accession.

(17)

As regards Iceland and Norway, this Decision constitutes a development of provisions of the Schengen acquis within the meaning of the Agreement concluded by the Council of the European Union and the Republic of Iceland and the Kingdom of Norway concerning the association of those two States with the implementation, application and development of the Schengen acquis (14), which fall within the area referred to in Article 1, point G of Council Decision 1999/437/EC (15).

(18)

As regards Switzerland, this Decision constitutes a development of provisions of the Schengen acquis within the meaning of the Agreement signed between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen acquis (16), which falls within the area referred to in Article 1, point G of Decision 1999/437/EC read in conjunction with Article 4(1) of Council Decision 2004/860/EC (17).

(19)

As regards Liechtenstein, this Decision constitutes a development of provisions of the Schengen acquis within the meaning of the Protocol signed between the European Union, the European Community, the Swiss Confederation and the Principality of Liechtenstein on the accession of the Principality of Liechtenstein to the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen acquis (18), which fall within the area referred to in Article 1, point G, of

Decision 1999/437/EC read in conjunction with Article 3 of Council Decision 2011/350/EU (19).

(20)

The measures provided for in this Decision are in accordance with the opinion of the Committee set up by Article 51 of Regulation (EC) No 1987/2006 and Article 67 of Decision 2007/533/JHA,

HAS ADOPTED THIS DECISION:

Article 1

1. Before integrating into the second generation Schengen Information System (SIS II), Member States shall conduct and undergo the tests and test procedure set out in the Annex to this Decision.
2. Member States which intend to implement a substantial change in their N.SIS II or SIRENE application shall request the Management Authority to determine which of the tests among those set out in the Annex to this Decision have to be performed and undergo the test procedure set out in the Annex to this Decision. The Member States concerned shall not implement those changes before the tests have been successfully performed.

Article 2

This Decision is addressed to the Member States.

Done at Brussels, 16 March 2015.